

Before the Federal Maritime Commission

Washington, DC.

Docket No. 25-08

FormuKleen, Inc.(Complainant)

vs.

Top Shipping Systems, Corp. (Respondent)

RESPONDENT'S RESPONSE TO MOTION FOR INTERIM RELIEF

I. INTRODUCTION

Respondent Top Shipping Systems Corp. (“TSS”), by and through its Vice President Ricky Villena appearing *pro se*, hereby submits this Response in opposition to Complainant FormuKleen, Inc.’s Motion for Interim Relief filed on July 13, 2025. The Motion is based on speculation, misconstrued statements, and misleading characterizations of a July 10, 2025 interaction none of which warrant emergency relief under 46 C.F.R. § 502.141(j). Furthermore, the Motion is improper, as there was no good faith effort to resolve the issue. The so-called good faith effort consisted of a single email sent on a Friday at 2:49 PM., followed by the filing of the Motion on Sunday afternoon.

II. FACTUAL BACKGROUND

Complainant’s Motion centers on a mischaracterization of a comment made by Mr. Villena regarding possible destruction of inventory. On July 3, 2025, Complainant was formally notified via email (Exhibit C) of a deadline for removing unclaimed goods. The reference to destruction was consistent with warehouse policy and was not intended as a threat, nor followed by any such conduct. No cargo has been damaged, destroyed, or disposed of.

Complainant relies heavily on TSS employee Rachel’s use of the word “stop” during the exchange. As explained in her sworn Declaration, that statement was directed at Complainant’s representative, Ms. Jessie Thodde, in response to her confrontational tone and unauthorized video recording. Rachel Villena called Mr. Villena while he was in a meeting to report that employees felt uncomfortable and needed assistance. Her reaction was consistent with the concern expressed by others and does not support a claim of misconduct. Also, attached is an affidavit from Ricky Vilena disputing the events as described in the Motion and discussing Ms. Thodde’s confrontational actions including

blocking the loading dock in Exhibit B. He also states the cargo was picked up on June 14th, 2025.

On July 10, 2025, Ms. Thodde arrived unannounced, questioned employees aggressively, and recorded staff without consent. She parked her car in front of the warehouse's receiving doors, obstructing operations, and failed to move the vehicle for approximately 30 minutes after being asked. She also threatened to call the police again, which would have been the third such incident. TSS staff contacted Mr. Villena to intervene, and ultimately, TSS called the police due to the workplace operational disruption.

Despite the hostile circumstances, Mr. Villena personally escorted Ms. Thodde to view her inventory. This was done to promote transparency and facilitate resolution, even though TSS was under no obligation to do so. Claims that access was denied are contradicted by these facts and the declarations submitted.

This Motion is Moot as all the goods were picked up on July 14, 2025. If anything, the Complainant should preserve the items that are the subject of its Motion.

III. LEGAL STANDARD AND ARGUMENT

Complainant seeks interim relief under 46 C.F.R. § 502.141(j), but fails to establish:

- A likelihood of success on the merits
- Irreparable harm absent immediate relief
- That the balance of harms favors them, or
- That the public interest would be served by granting relief.

TSS has preserved all cargo, made no threats, and acted reasonably under the circumstances. The Motion relies on assumptions, not evidence. The Motion is moot as the Complainant picked up its cargo.

IV. INITIAL ORDER COMPLIANCE

TSS has preserved all relevant documents, communications, and materials, in full compliance with the Initial Order dated June 23, 2025. The only thing that it has parted with is the Complainant's cargo which was picked up by the Complainant.

Complainant's notice of intent to file was procedurally deficient: Complainant sent its "duty to confer" email on Friday, July 11 at 2:49 PM., stating "We are filing a new and revised motion for interim relief. Reply as you wish." without context. The motion itself was filed just over 48 hours later, on Sunday, July 14 at 6:04 p.m., providing no practical opportunity to respond in violation of 46 C.F.R. § 502.71(a). This allowed only 2 hours during

business hours on a Friday afternoon to respond to the "good faith email." The Motion is not therefore in compliance with the Rules and there should be a denial of the Motion. The initial email from Complainant is shown in Exhibit D.

TSS does not request an oral hearing at this stage but reserves the right to do so should the court find it useful.

V. REQUEST FOR RELIEF

For the reasons stated above, Respondent Top Shipping Systems Corp. respectfully requests that the Commission:

- Deny Complainant's Motion for Interim Relief in its entirety.
- Find that the Motion is moot as the items were moved out by the Complainant.
- Find that the Motion was not in Compliance with the Rules.

Respectfully submitted,

TOP SHIPPING SYSTEMS CORP
Ricky Villena
Vice President, *pro se*

Dated: July 21st, 2025

CERTIFICATE OF SERVICE

I certify that on the 21st day of July, 2025, a true and correct copy of the foregoing Response to Response to Motion for Interim Relief was served by electronic mail upon the counsel of record for Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:

Sara Dandan

FourOneOne LLC

2501 Chatham Rd, Suite 8082

Springfield, IL 62704

Email: sara@fouroneone.io

DECLARATION OF RACHEL VILLENA IN OPPOSITION TO MOTION FOR INTERIM RELIEF

I, Rachel Villena, have personal knowledge of all items set forth in this affidavit which are as follows:

1. My name is Rachel Villena. I am employed by Top Shipping Systems Corp. (“TSS”) and was present at the TSS warehouse facility on July 10, 2025, during the events referenced in Complainant FormuKleen, Inc.’s Motion for Interim Relief.
2. At no point did I witness or participate in any threat to destroy cargo belonging to FormuKleen. Nor was there any intent expressed by any employee or representative of TSS to damage, discard, or interfere with Complainant’s goods. To my knowledge, no action has been taken to damage, discard, or compromise any property owned by FormuKleen. In fact, it was returned to them.
3. I observed a brief verbal exchange between Mr. Ricky Villena and Ms. Jessie Thodde, a representative of FormuKleen. While the interaction became tense due to Ms. Jessie Thodde’s confrontational tone and behavior, at no point did I perceive Ricky Villena’s responses as a threat of violence or destruction of property. Ms. Thodde intentionally misconstrued Ricky’s comments and escalated the situation as if to provoke.
4. The goods were never destroyed and were returned on July 14th. When Mr. Villena made a reference to items being “scheduled to be destroyed,” I understood this to refer to a prior written notice sent by TSS informing FormuKleen of a two-week deadline to retrieve stored goods, after which unclaimed or unwanted goods would be disposed of per company policy.
5. During the exchange, I did say the word “stop” out loud, but I wish to clarify that my intent was to de-escalate the tension in the room and address Ms. Thodde’s tone, not Ricky’s. I also lightly touched Ricky Villena’s arm as I was getting anxious and uncomfortable with her tone and connotations. This was not in response to any wrongdoing on his part, but rather to express my discomfort with how Ms. Thodde was behaving. (Law enforcement was called).
6. Ms. Thodde was confrontational from the outset of her visit, even before Ricky Villena arrived. Her tone toward TSS’ staff was aggressive and dismissive, which caused several employees to feel uncomfortable. I personally witnessed her behavior and found it unprofessional and unnecessarily adversarial.

EXHIBIT A (Continued)
Docket No. 25-08
Declaration of Rachel Villena

7. As I was nervously walking her back to the waiting room as instructed, I was disturbed by the way she was screaming on the phone next to me, misconstruing what I had just witnessed during the encounter between Ms. Thodde and Ricky Villena and misrepresenting what he had meant. When I tried to clarify in a calm tone, she addressed me in an aggressive manner. I asked, "Why are you speaking to me that way? We are just trying to help you," and she dismissed me by saying, "Who are you? You are not even in the emails," disrespectfully rejecting my clarification. She then started pressuring me to say what my name was, at which point I informed her: "Rachel."
8. Due to the uncomfortable atmosphere, I was one of the staff members who contacted Ricky Villena during his meeting to ask him to return to the warehouse to help manage the situation.
9. I affirm that TSS conducted itself professionally throughout the visit and made every effort to cooperate with FormuKleen in facilitating the cargo pickup. No threats, intimidation, or acts of spoliation occurred.

I declare under penalty of perjury that the foregoing is true and correct.

Respectfully submitted,

Rachel Villena

Dated: July 21st, 2025



EXHIBIT B
Docket No. 25-08
Declaration of Ricky Villena

DECLARATION OF RICKY VILLENA IN OPPOSITION TO MOTION FOR INTERIM RELIEF

I, Ricky Villena, have personal knowledge of all items set forth in this affidavit which are as follows:

1. My name is Ricky Villena. I serve as Vice President of Top Shipping Systems Corp. ("TSS"). I was present at the TSS warehouse facility on July 10, 2025, during the attempted cargo retrieval by FormuKleen, Inc.
2. At no point did I threaten to destroy cargo or intimidate any individual. My reference to destruction on that day was directly related to a prior written communication I sent to Complainant, notifying them of a final deadline for retrieving their cargo and outlining our standard procedures regarding unclaimed inventory. Any statement I made was consistent with that prior notice and was not intended as a threat.
3. In fact, the notice was intended to incentivize the pickup within the allotted time, as FormuKleen was using a very small truck to make pickups until the last few days, when they brought in their other trucks to collect the remaining cargo within the allocated time for removal. Notably, their driver, Mr. Anthony Garcia, mentioned that they have four trucks, including larger ones. However, he stated they were using the one small truck because it was more efficient for gas. This led me to believe they were employing stalling tactics to delay the pickup of their goods. The written notice was issued as part of standard warehouse procedure to encourage timely retrieval. A copy of that final notice email, dated July 3, 2025, is attached as Exhibit C.
4. The conversation between myself and Ms. Jessie Thodde became tense due to her demeanor and the discomfort she caused to my employees. When I arrived at the warehouse, I began speaking to her calmly in an effort to assist and de-escalate the situation. Despite my respectful approach, she told me she did not want to speak to me. She also spoke to staff in a confrontational tone, began recording without consent, and questioned employees in a manner that was perceived as aggressive and hostile. Although she was allowed supervised access to view her inventory granted in good faith and as a courtesy, her behavior had already caused significant concern among the staff and team.
5. Complainant has referenced a moment where my colleague, Rachel Villena, said "stop" during the exchange. To be clear, Rachel was not responding to anything I said or did. She later informed me that she made that comment because she felt

EXHIBIT B (Continued)
Docket No. 25-08
Declaration of Ricky Villena

uncomfortable with Ms. Thodde's confrontational tone and the fact that Ms. Thodde was actively recording videos of our employees and warehouse without permission.

6. Before I exited my meeting, Rachel Villena called me directly to ask that I come outside due to the hostile environment Ms. Thodde was creating. I ultimately had to leave the meeting early because multiple employees, including Rachel, reported feeling uncomfortable and threatened. Rachel's reaction was a direct response to Ms. Thodde's conduct, not mine, and was consistent with the concern expressed by other TSS staff. At one point, when Ms. Jessie Thodde was asked to wait in the lobby, she explicitly said, "I am not leaving and coming back into the warehouse with my tennis shoes that I have in my car," at which point we contacted law enforcement.
7. To my disbelief, despite our efforts to make this a smooth transaction, Ms. Thodde continued to be disruptive and confrontational as to provoke incidents. I asked her in a very professional manner, "Are you looking for trouble?" She immediately began yelling to the driver, asking if he knew what I meant. My remark was an attempt to understand why she was behaving so aggressively and confrontationally.
8. Before Ms. Thodde threatened to call the police for a third time, she had already involved law enforcement on two prior occasions. On one of those occasions, she contacted the police to attempt to return unwanted inventory that had originally been received, despite our prior written notice that the business relationship had ended. On July 10, it was TSS that contacted the police due to how disruptive and uncomfortable the situation had become for our employees.
9. Ms. Thodde also parked her BMW vehicle in front of our receiving doors, blocking commercial traffic and interfering with operations. She did not move the vehicle for approximately 30 minutes after being asked to do so by a TSS employee, thereby interfering with commerce.
10. In the interest of transparency and good faith, I personally walked Ms. Thodde to view her inventory. I was under no obligation to do so, but I wanted to de-escalate the situation and assist with resolution.
11. I have never acted violently or destructively toward FormuKleen, nor have I instructed anyone at TSS to damage or withhold their goods. On the contrary, we have made repeated, documented efforts to coordinate pickup, despite the challenges caused by Complainant's conduct.

EXHIBIT B (Continued)
Docket No. 25-08
Declaration of Ricky Villena

12. I have always tried to cordially facilitate the process for the removal of her cargo, to the point that we even lent our own equipment to help load their goods into their trucks.
13. The cargo at issue was returned to the Complainant on July 14th, 2025.
14. I understand that Ms. Thodde's motion is partially based on her interpretation of my statements. I maintain that her interpretation is incorrect and taken out of context. I welcome the opportunity to clarify the full circumstances in these proceedings.

I declare under penalty of perjury that the foregoing is true and correct.

Respectfully submitted,

Ricky Villena

Executed on this 21st day of July, 2025.

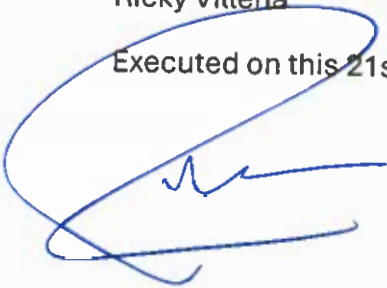
A handwritten signature in blue ink, consisting of a large, stylized 'R' followed by a horizontal line and a small flourish.

EXHIBIT C
Docket No. 25-08

Email from Ricky Villena to Jessie Thodde and Sara Dandan

From: Ricky Villena <ricky.villena@tsscorp.us>

Date: Thursday, July 3, 2025 at 2:50 PM

To: Jessie <jessie@formukleen.com>

Cc: Isaac Sarmiento <isaac.sarmiento@tsscorp.us>, Sara Dandan <sara@fouroneone.io>, Valerie Thodde <valerie@formukleen.com>, Veronica Martino <veronica.martino@tsscorp.us>, Yesireth De Freitas <yesireth.defreitas@tsscorp.us>, Jose De Freitas <jose.defreitas@tsscorp.us>, Yohana De Freitas <yohana.defreitas@tsscorp.us>, Sergio Rabelo <sergio.rabelo@tsscorp.us>

Subject: Final Notice: Inventory Removal Required Within 7 Business Days

Good Afternoon Jessie,

The statements in your recent message are inaccurate. The pallet you referenced, containing shiny bottles, was received into inventory in 2022 and documented by Alberto, a former FormuKleen employee. This item was stored well before your involvement with FormuKleen, and the corresponding warehouse receipt has already been provided to you.

Law enforcement was called to our facility for the second time yesterday again without any operational or legal issue that warranted such involvement. The responding officers expressed uncertainty about the purpose of their dispatch. These repeated visits have caused unnecessary disruption to our operations, despite our continued efforts to cooperate and resolve matters professionally.

As previously communicated, our business relationship with FormuKleen has formally ended. Since that time, we have acted in good faith to assist with the removal of your remaining inventory. We have accommodated your team's pickup requests, staged pallets, provided documentation promptly, and even lent our warehouse equipment to facilitate loading. Throughout this process, our staff has remained available and communicative in an effort to avoid further delays.

Despite these efforts, your drivers have continued to arrive without the ability or intent to collect the full inventory. As stated in prior communications, partial removals are not permitted. All remaining inventory must be collected in full.

Please consider this your final notice:

All pallets must be removed no later than Monday, July 14, 2025 (seven [7] business days from the date of this message, excluding July 4 and the weekend). After that date, we will no longer assume responsibility for the storage, condition, or handling of any remaining items.

Our request for full removal has remained consistent and is wholly unrelated to recent law enforcement visits or other external actions. We expect this matter to be resolved swiftly and without further disruption.

We remain committed to resolving this matter professionally and respectfully, and request that all future communication reflect the same.

This communication is made without waiver of any rights or remedies, all of which are expressly reserved.

Best Regards,



EXHIBIT D
Docket No. 25-08
Email from Complainant on Friday, July 11th at 2:49 PM

From: Sara Dandan <sara@fouroneone.io>
Sent: Friday, July 11, 2025 2:49 PM
To: Ricky Villena <ricky.villena@tsscorp.us>; Rachel Villena <rachel.villena@tsscorp.us>
Subject: Duty to confer

Pursuant to 502.71a I am advising you that we are filing a new and revised motion for interim relief. Reply as you wish.

Regards,

Sara Dandan, FourOneOne LLC
Admitted to Practice Before the Federal Maritime Commission

Confidentiality